

TERMS OF SERVICE & CLIENT AGREEMENT

(For AI Chatbot Solutions for SaaS Startups and Academies)

1. Introduction

This document outlines the terms and conditions governing the provision of AI chatbot solutions ("Services") by **SaarthX** ("Company", "we", "us", "our") to the client ("Client", "you", "your").

By engaging our services, you agree to be bound by the terms outlined in this agreement.

2. Scope of Services

We provide AI-powered chatbot solutions including but not limited to:

- Website chatbot deployment
- FAQ and knowledge-based chatbot setup
- Admission and lead capture chatbot for academies
- SaaS support and helpdesk chatbot
- Limited internal assistant chatbot (if agreed)
- Workflow automation (as defined in project scope)
- Integration with selected platforms (if included)
- Maintenance and monitoring services

The exact scope of work will be defined in a separate **Statement of Work (SOW)** or proposal document.

3. Payment Terms

3.1 One-Time Setup Fee

A one-time non-refundable fee is charged for:

- chatbot development
- configuration

- knowledge base setup
- deployment

3.2 Monthly Tools & Maintenance Fee

A recurring monthly fee is charged for:

- hosting and infrastructure
- third-party tools and APIs
- system monitoring
- maintenance and updates
- minor improvements and support

3.3 Payment Conditions

- The one-time setup fee shall be paid in two parts:
 - An advance payment at the time of agreement and project initiation
 - The remaining balance upon completion of integration
 - Integration shall be deemed complete when the chatbot is fully deployed and ready for use as per the agreed scope.
 - The monthly Tools & Maintenance Fee shall be charged at the end of each billing cycle, calculated from the date on which the full one-time setup fee has been paid.
 - All payments made to the Company, including one-time setup fees and monthly charges, are non-refundable.
 - Late or delayed payments may result in suspension of services until dues are cleared.
 - Any applicable taxes shall be borne by the Client.
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4. Client Responsibilities

The Client agrees to:

- Provide accurate and lawful content, documents, and data
- Ensure they have rights to use all uploaded materials

- Review chatbot responses before and after deployment
- Use the chatbot in a lawful and ethical manner
- Handle escalated queries that require human intervention

The Client is solely responsible for:

- the accuracy of their business information
 - compliance with applicable laws and regulations
 - decisions made based on chatbot outputs
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5. Data Usage and Privacy

5.1 Data Ownership

- All client data remains the property of the Client
- We process data only to deliver the agreed services

5.2 Data Handling

We take reasonable and industry-standard measures to:

- protect data
- restrict unauthorized access
- maintain system integrity

5.3 Data Storage

Data may be stored on:

- secure cloud infrastructure
- third-party service providers required for functionality

5.4 Data Retention

Data will be retained only as long as necessary for service delivery unless otherwise agreed.

6. Security and Risk Disclaimer

We prioritize the **security, reliability, and quality** of our services and implement best practices to protect data and systems.

However, the Client acknowledges that:

- No digital system can be guaranteed to be completely secure
- Risks such as data breaches, unauthorized access, or system vulnerabilities may exist
- External factors such as third-party services, APIs, hosting providers, or user behavior may impact security

Accordingly:

- We do **not guarantee absolute security**
- We shall not be held liable for data breaches or security incidents beyond our reasonable control

For chatbot types such as:

- general FAQ bots
- customer support chatbots
- admission inquiry bots

the level of sensitive data is typically minimal, and therefore the associated risk is generally lower.

7. AI and Accuracy Disclaimer

The Client acknowledges that:

- The chatbot uses AI-generated responses based on provided data and configurations
- Responses may not always be fully accurate, complete, or up-to-date
- The chatbot is intended to assist, not replace human judgment

The Client agrees:

- Not to rely solely on chatbot responses for critical decisions
- To review and validate important information
- To ensure human oversight where required

8. Third-Party Services

Our services may rely on third-party providers including:

- AI/LLM providers
- hosting services
- messaging platforms (e.g., WhatsApp)
- analytics tools
- integration platforms

We are not responsible for:

- outages or failures of third-party services
- changes in pricing or policies of third-party providers
- limitations imposed by such services

Any additional costs arising from third-party services may be billed separately if applicable.

9. Intellectual Property

- The Client retains ownership of their data and content
- The Company retains ownership of:
 - its platform
 - reusable code
 - frameworks and systems

Custom-developed components may be subject to separate agreement.

The Client is granted a limited, non-transferable license to use the chatbot solution during the service period.

10. Support and Maintenance

Support includes:

- basic troubleshooting
- minor updates
- monitoring and uptime checks

Support does not include:

- major feature development
- new integrations outside scope
- unlimited revisions

Support timelines:

- response within reasonable business hours
- resolution time depending on issue complexity

11. Service Availability

We strive to maintain high availability and performance.

However:

- uninterrupted service is not guaranteed
- maintenance or unforeseen issues may cause downtime

12. Limitation of Liability

To the maximum extent permitted by law:

- We shall not be liable for:
 - indirect or consequential damages
 - loss of revenue, data, or business
 - decisions made based on chatbot responses
 - Our total liability shall not exceed the total fees paid by the Client in the preceding **3 months**.
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13. Termination

13.1 By Client

- Client may terminate with prior written notice
- No refunds for completed work

13.2 By Company

We may suspend or terminate services if:

- payments are not made
- terms are violated
- misuse of service is detected

13.3 After Termination

- chatbot access may be disabled
 - data may be deleted after a defined period
 - outstanding payments remain payable
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14. Acceptable Use Policy

The Client agrees not to use the chatbot for:

- illegal activities
 - spam or unsolicited messaging
 - harassment or harmful communication
 - impersonation or deception
 - distribution of misleading or unlawful content
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15. Confidentiality

Both parties agree to:

- keep confidential information private
- not disclose sensitive data to third parties

- use information only for the purpose of the agreement
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16. Modifications

We reserve the right to update these terms.
Clients will be notified of significant changes.

17. Governing Law

This agreement shall be governed by and interpreted in accordance with the laws of **India**.

18. Acceptance

By using our services, the Client acknowledges that they have read, understood, and agreed to these terms.

Final Note

Our goal is to provide **high-quality, reliable, and practical AI chatbot solutions** that support real business operations.

We commit to delivering our services with professionalism, transparency, and continuous improvement.

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